

June 18, 2026

Office of Governor Matt Meyer
Tatnall Building
150 Martin Luther King Jr Blvd South
Dover, DE 19901

RE: VETO REQUEST – Delaware HB 380

Dear Governor Meyer:

On behalf of the advertising industry, we write to oppose Delaware HB 380 and we offer this letter to express our non-exhaustive list of concerns with the proposed legislation.¹ We and the companies we represent, many of whom do substantial business in Delaware, strongly believe consumers deserve meaningful protections supported by reasonable laws and industry policies. However, as currently drafted, HB 380 would amend the Delaware Personal Data Privacy Act (“DPDPA”) in a manner that would diverge from the existing state privacy law consensus. We therefore ask you to **VETO HB 380**.

- **HB 380 would establish prescriptive sensitive data consent requirements that are unnecessary and misaligned with other state laws.** HB 380 would impose highly prescriptive six-part consent requirements for the processing of sensitive data that diverge from the approach adopted in other state privacy laws.² While existing state privacy laws generally require consumer consent before processing sensitive personal data, HB 380 would layer on rigid operational and disclosure requirements that create unnecessary complexity for residents of Delaware as well businesses already complying with the DPDPA. The proposed new sensitive data consent requirements are unlikely to provide meaningful additional consumer protection beyond existing consent obligations, but they would increase implementation costs and undermine efforts to maintain consistency across state privacy laws. Delaware should avoid adopting outlier consent mandates that move further away from regulatory harmonization. One report found that state privacy laws could impose out-of-state costs of between \$98 billion and \$112 billion annually, with costs exceeding \$1 trillion dollars over a 10-year period and small businesses shouldering a significant portion of the compliance cost burden.³ Delaware should not enact amendments to the DPDPA that could add to this compliance burden for businesses.

¹ Delaware HB 380 (2026 Session) located [here](#) (hereinafter, “HB 380”).

² HB 380 Sec. 1, § 12D-106(a)(12).

³ Daniel Castro, Luke Dascoli, and Gillian Diebold, *The Looming Cost of a Patchwork of State Privacy Laws* (Jan. 24, 2022), located at <https://itif.org/publications/2022/01/24/looming-cost-patchwork-state-privacy-laws> (finding that small businesses would bear approximately \$20-23 billion of the out-of-state cost burden associated with state privacy law compliance annually).



As currently drafted, HB 380 would amend the DPDPA in ways that do not align with the approach taken by many states, causing confusion and undue compliance burdens. We therefore strongly urge you to **VETO HB 380**.

* * *

Thank you in advance for your consideration of this letter.

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-296-1883

Alison Pepper
EVP, Government Relations & Policy
American Association of Advertising Agencies, 4As
202-355-4564

Clark Rector
Executive VP—Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria
CEO
Digital Advertising Alliance
347-770-0322

CC: Mike Signorelli, Venable LLP
Allie Monticollo, Venable LLP
Matthew Stern, Venable LLP